ATTORNEY OR PARTY WITHOUT ATTORNEY
STATE BAR NUMBER:
NAME: Brendan Ngehsi Newanforbi
FIRM NAME:
STREET ADDRESS: 1455 Cat Tail Drive
CITY: Stockton
STATE: CA
ZIP CODE: 95204
TELEPHONE NO.:
FAX NO.:
EMAIL ADDRESS: bnn.cdl@gmail.com
ATTORNEY FOR *(name):*

FOR COURT USE ONLY

ELECTRONICALLY FILED
Superior Court of California,
County of Alameda
06/30/2026 at 03:40:36 PM
By: Jerrie Moyer,
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF Alameda
STREET ADDRESS: 1221 Oak Street
MAILING ADDRESS: 1221 Oak Street
CITY AND ZIP CODE: Oakland, CA 94612
BRANCH NAME:

PLAINTIFF/PETITIONER: Brendan Ngehsi Newanforbi
DEFENDANT/RESPONDENT: California Highway Patrol; G. Serrato, et al.

CASE MANAGEMENT STATEMENT

CASE NUMBER: 26CV191136

(Check one): ☐ **UNLIMITED CASE** (Amount demanded exceeds $35,000) ☐ **LIMITED CASE** (Amount demanded is $35,000 or less)

A **CASE MANAGEMENT CONFERENCE** is scheduled as follows:

Date: 07/15/2026 Time: 4:00 PM Dept.: Dept. 25 Div.: Room:

Address of court *(if different from the address above):*

☐ **Notice of Intent to Appear by Telephone, by *(name):***

INSTRUCTIONS: All applicable boxes must be checked, and the specified information must be provided.

1. **Party or parties** *(answer one):*
   a. ☒ This statement is submitted by party *(name):* Brendan Ngehsi Newanforbi, Petitioner, In Pro Per
   b. ☐ This statement is submitted **jointly** by parties *(names):*
2. **Complaint and cross-complaint** *(to be answered by plaintiffs and cross-complainants only)*
   a. The complaint was filed on *(date):* 05/29/2026
   b. ☐ The cross-complaint, if any, was filed on *(date):*
3. **Service** *(to be answered by plaintiffs and cross-complainants only)*
   a. ☒ All parties named in the complaint and cross-complaint have been served, have appeared, or have been dismissed.
   b. ☐ The following parties named in the complaint or cross-complaint
      (1) ☐ have not been served *(specify names and explain why not):*
      (2) ☐ have been served but have not appeared and have not been dismissed *(specify names):*
      (3) ☐ have had a default entered against them *(specify names):*
   c. ☐ The following additional parties may be added *(specify names, nature of involvement in case, and date by which they may be served):*
4. **Description of case**
   a. Type of case in ☒ complaint ☐ cross-complaint *(Describe, including causes of action):*

Type of case: Writ of Mandate (Code Civ. Proc. § 1085) — Failure to Perform Mandatory Duty Under Penal Code § 679.10; Declaratory Relief (Code Civ. Proc. § 1060), 1. Writ of Mandate — Failure to Perform Mandatory Duty (Pen. Code § 679.10(b)) 2. Writ of Mandate — Failure to Comply With Reason-Giving Requirement (§ 679.10(g)) 3. Writ of Mandate — Failure to Apply Rebuttable Presumption of Helpfulness (§ 679.10(h)) 4. Declaratory Relief (Code Civ. Proc. § 1060)

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4. b. Provide a brief statement of the case, including any damages *(if personal injury damages are sought, specify the injury and damages claimed, including medical expenses to date [indicate source and amount], estimated future medical expenses, lost earnings to date, and estimated future lost earnings; if equitable relief is sought, describe the nature of the relief):*

This is a Verified Petition for Writ of Mandate to compel Respondent California Highway Patrol ("CHP") and named individual Respondents to perform mandatory, non-discretionary duties owed to Petitioner under California Penal Code § 679.10 (as amended by AB 1261, eff. Jan. 1, 2024).

☒ *(If more space is needed, check this box and attach a page designated as Attachment 4b.)*

5. **Jury or nonjury trial**

The party or parties request ☐ a jury trial ☒ a nonjury trial. *(If more than one party, provide the name of each party requesting a jury trial):*

6. **Trial date**

a. ☐ The trial has been set for *(date):*

b. ☒ No trial date has been set. This case will be ready for trial within 12 months of the date of the filing of the complaint *(if not, explain):*

c. Dates on which parties or attorneys will not be available for trial *(specify dates and explain reasons for unavailability):*

7. **Estimated length of trial**

The party or parties estimate that the trial will take *(check one)*

a. ☐ days *(specify number):*

b. ☒ hours (short causes) *(specify):* 2 -- 4 hours

8. **Trial representation** *(to be answered for each party)*

The party or parties will be represented at trial ☐ by the attorney or party listed in the caption ☒ by the following:

a. Attorney: Brendan Ngehsi Newanforbi

b. Firm:

c. Address: 1455 Cat Tail Drive

d. Telephone number: (209) 801-4442

e. Email address: bnn.cdl@gmail.com

f. Fax number:

g. Party represented: Petitioner

☐ Additional representation is described in Attachment 8.

9. **Preference**

☐ This case is entitled to preference *(specify code section):*

10. **Alternative dispute resolution (ADR)**

a. **ADR information package.** Please note that different ADR processes are available in different courts and communities; read the ADR information package provided by the court under rule 3.221 of the California Rules of Court for information about the processes available through the court and community programs in this case.

(1) For parties represented by counsel: Counsel ☒ has ☐ has not provided the ADR information package identified in rule 3.221 to the client and reviewed ADR options with the client.

(2) For self-represented parties: Party ☐ has ☐ has not reviewed the ADR information package identified in rule 3.221.

b. **Referral to judicial arbitration or civil action mediation** (if available).

(1) ☐ This matter is subject to mandatory judicial arbitration under Code of Civil Procedure section 1141.11 or to civil action mediation under Code of Civil Procedure section 1775.3 because the amount in controversy does not exceed the statutory limit.

(2) ☐ Plaintiff elects to refer this case to judicial arbitration and agrees to limit recovery to the amount specified in Code of Civil Procedure section 1141.11.

(3) ☒ This case is exempt from judicial arbitration under rule 3.811 of the California Rules of Court or from civil action mediation under Code of Civil Procedure section 1775 et seq. *(specify exemption):*
Writ of mandate proceedings are not subject to judicial arbitration because the relief sought is equitable (mandamus/declaratory relief), not money damages.

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10. c. In the table below, indicate the ADR process or processes that the party or parties are willing to participate in, have agreed to participate in, or have already participated in *(check all that apply and provide the specified information):*

	The party or parties completing this form **are willing** to participate in the following ADR processes *(check all that apply):*	If the party or parties completing this form in the case **have agreed** to participate in or have already completed an ADR process or processes, indicate the status of the processes *(attach a copy of the parties' ADR stipulation):*
(1) Mediation	☒	☐ Mediation session not yet scheduled ☐ Mediation session scheduled for (*date*)*:* ☐ Agreed to complete mediation by (*date*)*:* ☐ Mediation completed on (*date*)*:*
(2) Settlement conference	☒	☐ Settlement conference not yet scheduled ☐ Settlement conference scheduled for (*date*)*:* ☐ Agreed to complete settlement conference by (*date*)*:* ☐ Settlement conference completed on (*date*)*:*
(3) Neutral evaluation	☐	☐ Neutral evaluation not yet scheduled ☐ Neutral evaluation scheduled for (*date*)*:* ☐ Agreed to complete neutral evaluation by (*date*)*:* ☐ Neutral evaluation completed on (*date*)*:*
(4) Nonbinding judicial arbitration	☐	☐ Judicial arbitration not yet scheduled ☐ Judicial arbitration scheduled for (*date*)*:* ☐ Agreed to complete judicial arbitration by (*date*)*:* ☐ Judicial arbitration completed on (*date*)*:*
(5) Binding private arbitration	☐	☐ Private arbitration not yet scheduled ☐ Private arbitration scheduled for (*date*)*:* ☐ Agreed to complete private arbitration by (*date*)*:* ☐ Private arbitration completed on (*date*)*:*
(6) Other (*specify*):	☐	☐ ADR session not yet scheduled ☐ ADR session scheduled for (*date*)*:* ☐ Agreed to complete ADR session by (*date*)*:* ☐ ADR completed on (*date*)*:*

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11. **Insurance**

a. ☐ Insurance carrier, if any, for party filing this statement *(name):*

b. Reservation of rights: ☐ Yes ☐ No

c. ☐ Coverage issues will significantly affect resolution of this case *(explain):*

12. **Jurisdiction**

Indicate any matters that may affect the court's jurisdiction or processing of this case and describe the status.

☐ Bankruptcy ☐ Other *(specify):*

Status:

13. **Related cases, consolidation, and coordination**

a. ☐ There are companion, underlying, or related cases.

(1) Name of case:

(2) Name of court:

(3) Case number:

(4) Status:

☐ Additional cases are described in Attachment 13a.

b. ☐ A motion to ☐ consolidate ☐ coordinate will be filed by *(name party):*

14. **Bifurcation**

☐ The party or parties intend to file a motion for an order bifurcating, severing, or coordinating the following issues or causes of action *(specify moving party, type of motion, and reasons):*

15. **Other motions**

☒ The party or parties expect to file the following motions before trial *(specify moving party, type of motion, and issues):*
Moving Party Type of Motion Issues: Petitioner Opposition to Demurrer Respondents' demurrer to the Verified Petition is due July 10, 2026. Petitioner will file opposition. Petitioner Motion for Peremptory Writ On the merits, if demurrer is overruled

16. **Discovery**

a. ☐ The party or parties have completed all discovery.

b. ☐ The following discovery will be completed by the date specified *(describe all anticipated discovery):*

Party	Description	Date

c. ☒ The following discovery issues, including issues regarding the discovery of electronically stored information, are anticipated *(specify):*

Petitioner anticipates that discovery may be necessary regarding:
· CHP's review process for the April 9, 2026 certification request
· The dashcam recording and its review by Respondents
· The basis for the April 20, 2026 denial
· CHP's policies and practices regarding U-visa certifications

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17. **Economic litigation**

a. ☐ This is a limited civil case (i.e., the amount demanded is $35,000 or less) and the economic litigation procedures in Code of Civil Procedure sections 90-98 will apply to this case.

b. ☐ This is a limited civil case and a motion to withdraw the case from the economic litigation procedures or for additional discovery will be filed *(if checked, explain specifically why economic litigation procedures relating to discovery or trial should not apply to this case):*

18. **Other issues**

☒ The party or parties request that the following additional matters be considered or determined at the case management conference *(specify):*

1. Respondents' anticipated demurrer — filed July 10, 2026. Petitioner requests a briefing schedule be set.
2. Continuance — Respondents have informally requested a continuance of the July 15 CMC. Petitioner does not agree to a continuance. There is no good cause shown. The July 15 CMC has been on calendar since May 29, 2026. Respondents have had ample time to prepare. A continuance would prejudice Petitioner, whose U-visa application is pending the outcome of this certification.
3. Scheduling — Petitioner requests the court set a firm schedule, including:
   · Briefing schedule for the demurrer
   · A hearing date on the demurrer
   · A trial setting conference or hearing on the merits if the demurrer is overruled

19. **Meet and confer**

a. ☒ The party or parties have met and conferred with all parties on all subjects required by rule 3.724 of the California Rules of Court *(if not, explain):*

The party or parties have met and conferred with all parties on all subjects required by rule 3.724 of the California Rules of Court. Explanation: On June 29, 2026, Petitioner met and conferred by telephone with Deputy Attorney General Vanessa Ing regarding Respondents' anticipated demurrer and the requested continuance. Petitioner did not agree to the continuance.

b. ☒ After meeting and conferring as required by rule 3.724 of the California Rules of Court, the parties agree on the following *(specify):*

The parties agree on the following:
· Respondents will file their demurrer by July 10, 2026.
· Petitioner will file opposition within the time permitted by law.

The parties do not agree on:
· Whether the July 15, 2026 CMC should be continued

20. Total number of pages attached *(if any):* _____

I am completely familiar with this case and will be fully prepared to discuss the status of discovery and alternative dispute resolution, as well as other issues raised by this statement, and will possess the authority to enter into stipulations on these issues at the time of the case management conference, including the written authority of the party where required.

Date: 06/30/2026

Brendan Ngehsi Newanforbi
(TYPE OR PRINT NAME)

▶ _____
(SIGNATURE OF PARTY OR ATTORNEY)

_____
(TYPE OR PRINT NAME)

▶ _____
(SIGNATURE OF PARTY OR ATTORNEY)

☐ Additional signatures are attached.

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ATTACHMENT 4b

to Case Management Statement (CM-110), Item 4b
Brief Statement of the Case (Continued)

On April 9, 2026, Petitioner submitted a formal request for Form I-918, Supplement B U Nonimmigrant Status Certification, together with extensive supporting evidence including a dashcam transcript, CHP arrest report, and CHP's own § 851.6 Detention Certificate reclassifying the arrest as "a detention only" for "insufficient grounds."

On April 20, 2026, Respondent G. Serrato issued a one-page denial letter that is facially deficient under § 679.10(g) because it fails to provide "specific reasons" for the denial, does not identify which statutory element Petitioner allegedly fails, does not address any enumerated qualifying offense, does not engage with the dashcam evidence, does not reference the § 851.6 certificate, and does not apply the rebuttable presumption of helpfulness under § 679.10(h).

Relief sought: Peremptory writ of mandate vacating the April 20 denial; order compelling reconsideration under correct legal standards; compliance with § 679.10(g) reason-giving requirement; declaratory relief. No money damages are sought in this action (separate § 1983 action pending).